two major issues. Lamb asserts that the Tibetan government was not independent and could not enter into such an agreement without Chinese approval. He argues that Lamb

> ignores the fact that the Tibetan government had formally declared its independence from China in 1913, and had established effective authority throughout the state prior to the Simla Conference…The question whether the British and Tibetan governments were competent to conclude an agreement delineating the Indian-Tibet border…is dismissed [by Lamb] in short paragraph. Yet it is certainly legitimate to argue that the British and Tibetan governments were acting within the limits of their competence, and that the failure of the Chinese to ratify the convention is of no *legal* significance as far as the McMahon Line is concerned.[41]

And, besides, Chen had put his initials on the map accompanying the border agreement.

Lamb's argument, in a footnote in his book, that Tibet acknowledged Chinese 'suzerainty' in the Shimla Convention is, according to Rose,

> indeed curious given his general line of analysis, as apparently he would recognise the competence of the Tibetan government to make at least this kind of commitment for the Tibetan people. But he fails to note that this clause of the Convention would [according to the text] come into effect *only* after Chinese ratification. As the Chinese did not ratify the agreement, the whole argument is superfluous.[42]

Rose's other point is that Lamb's arguments are based on conventions signed by Britain and China and Britain and Russia, which would limit the capacity of the British to act in Tibet. According to Rose, 'While it may be argued that the British violated both those conventions [with Russia and China] in reaching an agreement with Tibet, it is indeed astonishing to conclude that a treaty signed under radically different circumstances is itself invalid under international law. The precedents against such an interpretation are overwhelming.'[43]

Reality is also much less convoluted and dramatic than the accounts of those who have accepted the Chinese version of events during and after the Shimla Conference. While Chen and his Chinese delegates were preoccupied with Tibet's status and the demarcation of the boundary between Tibet and China proper, it is evident from the records of the Shimla Convention that they had little or no idea where the Indo-Tibetan border was or should be. Chen deplored the absence of any 'accurate and detailed maps of the region on the various frontiers of Tibet'.[44] According to Pradip Phanjoubam, Chen 'was not sure where the Indian boundary was